

HOUSE No. 371

The Commonwealth of Massachusetts

PRESENTED BY:

Paul K. Frost

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to local boards of health and the sale of legal consumer products in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/16/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/28/2025</i>

HOUSE No. 371

By Representative Frost of Auburn, a petition (accompanied by bill, House, No. 371) of Paul K. Frost and Joseph D. McKenna relative to bans on the sale of legal consumer products by local boards of health. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to local boards of health and the sale of legal consumer products in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, Boards of Health in cities and
2 towns shall not have the power to ban the community-wide sale of any legal consumer product
3 by authorized stores, establishments and any other entities legally allowed to sell such products
4 in the Commonwealth and within the existing by-laws of the community, wholesale or retail,
5 without receiving the approval of town meeting or city council to create such a by-law within the
6 city or town. This provision shall not interfere with a Board of Health's ability to take action for
7 an emergency and immediate health concern for a specific consumer product or from a specific
8 location if a health code violation has otherwise occurred or some other emergency health issue
9 should arise so long as such action is not to ban the legal sale for the sake of doing so.